

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR C61
HON. JENNIFER M. MCCARTNEY

Date: 09/04/2026

Courtroom Rules and Notices

The Court will continue to upload tentative rulings as they are completed. Please be sure to keep checking until 8:30 AM on the day of your hearing.

Written responses, oppositions, or filings that are filed later than 12:15 PM the day before the hearing on the motion will go on second call by the Court for the Court to have an opportunity to review any last-minute filings. If a party files a written response, opposition, or any filing after 12:15 PM on the day before the hearing, the party must ensure they are available for the Court's afternoon calendar the day of the hearing.

Submitting on tentative rulings: If all counsel/parties intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5261 – both counsel need to state they are submitting on the tentative. Please do not call the Department unless all parties submit to the tentative ruling. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling, and the prevailing party shall give notice of the ruling and prepare an order for the Court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

#	Case Name	Tentative
1	30-2026-01582469 The Regents for The University of California vs. Normoxi LLC	Pending – check back later
2	30-2026-01589059 Prime/South Coast Holding, LLC vs. West	The Court has read and considered the Defendants' Demurrer to the Complaint for Unlawful Detainer (ROA 14), the Complaint (ROA 2) and the Plaintiff's Opposition (ROA 19). The Court OVERRULES the Demurrer. The Defendants are to file an Answer within 5 calendar days. Plaintiff is ordered to provide notice of the Court's ruling.
3	30-2026-01589203 Sequoia Equities - Hidden Hills vs. Gabroy	The Court has read and considered the Defendant's Demurrer to Complaint (ROA 16), Defendant's Request for Judicial Notice (ROA 19) and the Complaint (ROA 2). The Court DENIES the request for Judicial Notice as to Exhibits 1–3, as the documents are not proper items for judicial notice under Evidence Code section 452(h).

		California Rules of Court, Rule 3.1320 states “A party filing a demurrer must serve and file therewith a notice of hearing that must specify a hearing date in accordance with the provisions of Code of Civil Procedure section 1005 and, if service is by electronic means, in accordance with the requirements of Code of Civil Procedure section 1010.6(a)(4) and rule 2.251(h)(2).” Defendant failed to provide notice and service of the demurrer on the Plaintiff as required under the applicable Code of Civil Procedure and California Rules of Court. As this was not properly noticed and served, the Demurrer is taken off calendar. The Court Clerk is to provide notice.
4	30-2026-01590441 Nguyen vs. McIntosh	The Court has read and considered the Defendants' Demurrer to Amended Complaint (ROA 11) and the Amended Complaint (ROA 7). California Civil Code § 1954.535 provides that an owner must provide a tenant subject to an agreement or contract with a government agency with 90 days' written notice of the termination of the contract. This California Civil Code section does not exempt a landlord from the requirements under the Tenant Protection of 2019 if it applies to the tenancy, requiring notice under the just cause provision under Civil Code section 1946.2(b) or the California Code of Civil Procedure § 1161 requirements. The Plaintiff answered 7(b) in the Amended Complaint that the Tenant Protection Act of 2019 applies and that, under 8(a), the tenancy was terminated for at-fault just cause. The 90 Day Notice attached to the Amended Complaint does not meet the legal notice requirements for a just cause termination pursuant to Civil Code § 1946.2(b) or the California Code of Civil Procedure § 1161 requirements. A Notice to Quit cannot be amended. The Court of Appeal held that when a plaintiff fails to strictly comply with the requirement under California Code of Civil Procedure section 1161, a plaintiff fails to state a cause of action for unlawful detainer. (<i>Eshagian v. Cepeda</i> (2025) 112 Cal.App. 5th 433, 457-459.) The Court SUSTAINS the Demurrer without leave to amend. The Court dismisses the complaint with prejudice. The Court Clerk is to provide notice of the Court's ruling.
6	30-2026-01542413 Christopher Paul Teague as Trustee of the Teague Family Trust dated August 5, 2010 as restated on August 17, 2018 vs. Rutledge	The Court has read and considered the Defendant Stephanie Martin Rutledge's Notice of Motion to Set Aside the June 29, 2026 Default Money Judgment (ROA 70), Declaration in Support (ROA 73), and Reply to Motion (ROA 75). The Defendant failed to provide notice and service of the Motion pursuant to California Code of Civil Procedure § 1005 on the Plaintiff. No declaration of service or proof of service is attached to the Motion to Vacate, Declaration In support or Reply to Motion. The Court of Appeal held that a litigant in